

Sri. Sridharachari @ Sridhar vs Smt Suvarna on 7 February, 2023

Bench: Alok Aradhe, S Vishwajith Shetty

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MFA No. 8042 of 2015

IN THE HIGH COURT OF KARNATAKA AT BENGALURU
DATED THIS THE 7TH DAY OF FEBRUARY, 2023
PRESENT
THE HON'BLE MR JUSTICE ALOK ARADHE
AND
THE HON'BLE MR JUSTICE S VISHWAJITH SHETTY
M.F.A. NO. 8042 OF 2015 (FC)

BETWEEN:
SRI SRIDHARACHARI @ SRIDHAR
S/O RAMACHARI
AGED ABOUT 52 YEARS
R/AT NO.127, 3RD CROSS
SRIRAMANAGAR
GELEYARABALAGA
MAHALAKSHMI LAYOUT
BANGALLOORU - 560 086.

...APPELLANT

(BY SRI VIJAYAKUMARA., ADV.)

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by B A
KRISHNA
KUMAR
Location: High
Court of
Karnataka

AND:

SMT. SUVARNA
W/O SRIDHARACHARI @ SRIDHAR
AGED ABOUT 45 YEARS
R/AT OP TO SIDDARAMANNA
HOSTEL, P.R. NAGAR
CHICKPETE, TUMAKUR - 572 101.

...RESPONDENT

(BY SMT. S.NAGANANDINI, ADV., FOR
SRI G. JAIRAJ, ADV.,)

THIS MFA IS FILED U/S.19(1) OF THE FAMILY COURT ACT,
PRAYING AGAINST THE JUDGMENT AND DECREE DATED:18.08.2015
PASSED IN MC NO.27/2013 (M.C.65/2012) ON THE FILE OF THE
PRINCIPAL JUDGE, FAMILY COURT, TUMKUR, DISMISSING THE
PETITIONER FILED U/S.13(1) (1-b) OF THE HINDU MARRIAGE ACT.

THIS APPEAL, COMING ON FOR HEARING, THIS DAY,
VISHWAJITH SHETTY J., DELIVERED THE FOLLOWING:

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MFA No. 8042 of 2015

JUDGMENT

This Miscellaneous First Appeal under Section 19(1) of the Family Courts Act, 1984, is filed assailing the judgment and decree dated 18.08.2015 passed by the Prl. Judge, Family Court, Tumakuru, in M.C.No.27/2013 (Old M.C.No.65/2012), wherein the petition filed by the appellant-husband under Section 13(1)(ib) of the Hindu Marriage Act, 1955 (for short, 'the Act') has been dismissed.

2. Heard the learned Counsel for the parties and also perused the material available on record.

3. Brief facts of the case as revealed from the records that may be necessary for the purpose of disposal of this appeal are, the marriage of the appellant with the respondent was solemnized on 11.05.1986 at Sri Aswathanarayana Sannidhi, Viduraswatha, Gowribidanur Taluk, as per the rites and customs prevailing in the community. From the wedlock, though three children were born to the couple, all the children had died after some time from the date of their birth. The couple had lived together for about 16 years. In the meanwhile, there was a lot of misunderstanding between themselves and ultimately, it appears that the respondent had left the company of the appellant and started residing with her parents. It is under these circumstances, the appellant had filed the petition under Section 13(1)(ib) of the Act, with a prayer to dissolve the marriage that was solemnized on 11.05.1986 on the ground of desertion. Initially, the said case was registered as M.C.No.65/2012, and thereafter, it was re-numbered as M.C.No.27/2013.

4. The respondent had entered appearance in the said proceedings and had filed her statement of objections. Before the Family Court, the appellant had examined himself as PW-1 and another witness as PW-2. He had got marked four documents as Exs.P-1 to P-4. On behalf of the respondent, she had examined herself as RW-1 and another witness as RW-2 and got marked four documents as Exs.R-1 to R-4. The Family Court, thereafter, vide the impugned judgment and decree had dismissed the petition and being aggrieved by the same, the appellant-husband is before this Court.

5. Learned Counsel for the appellant submits that the Family Court has erred in dismissing the petition and it has not properly appreciated the oral and documentary evidence available on record. He submits that the respondent has deserted the appellant without there being any good reason, and therefore, the Family Court ought to have allowed the petition. He submits that for the last more than 10 years, the parties are residing separately, and therefore, no purpose will be served in continuing the marital tie, and accordingly, prays to allow the appeal.

6. Per contra, learned Counsel appearing for the respondent has argued in support of the impugned judgment and decree and submits that the appellant has not made out any ground before the Family Court in support of his prayer for dissolution of the marriage on the ground of desertion, and therefore, the Family Court has rightly dismissed the petition.

7. The appellant who has approached the Family Court in a petition filed by him under Section 13(1)(ib) of the Act, was required to prove before the Family Court that the respondent- wife was guilty of deserting him without there being any valid reason for a continuous period of more than two years immediately prior to filing of the petition. Section 13(1)(ib) of the Act reads as under:

"13. Divorce.- (1) Any marriage solemnised, whether before or after the commencement of this Act, may, on a petition presented by either the husband or the wife, be dissolved by a decree of divorce on the ground that the other party-

(i) xxx (ia) xxx (ib) has deserted the petitioner for a continuous period of not less than two years immediately preceding the presentation of the petition; or"

8. From the perusal of the petition averments and also the deposition of the appellant, it is seen that he has not given the particulars about the alleged desertion by the appellant. Except stating that she has left his company and has taken shelter in her parents house, he has not stated the exact date on which she had left the company of the appellant. There is nothing on record to show that the respondent had left the company of the appellant or deserted the appellant for a continuous period of two years immediately prior to filing of the petition by the appellant. In the absence of any such material before the Court, the relief sought for by the appellant in a petition filed under Section 13(1)(ib) of the Act cannot be granted.

9. The Family Court unfortunately has not dealt with the aforesaid aspect of the matter and on some other consideration has dismissed the petition. However, having regard to the fact that there is absolutely no material on record to show that the respondent had left the company of the appellant or that she had deserted the appellant for a continuous period of two years prior to the filing of the petition, we are of the considered view that the relief sought for in the petition under Section 13(1)(ib) of the Act cannot be granted. Under the circumstances, we do not find any merit in this appeal. Accordingly, the same is dismissed.

Sd/-

JUDGE Sd/-

JUDGE KK